2022 Y L R 1033

[Gilgit-Baltistan Chief Court]

Before Malik Inayat-ur-Rehman, J

MOHAMMAD SALEEM---Petitioner

Versus

Mst. SAFIA BEGUM and another---Respondents

Civil Revision No. 119 of 2019, decided on 20th October, 2021.

Family Courts Act (XXXV of 1964)---

----S. 5, Sched.---Suit for recovery of dower---Scope---Plaintiff (wife) sought recovery of dower after being divorced---Contention of defendant (husband) was that the plaintiff had obtained divorce as a result of private arbitration and that she had withdrawn from all her claims---Contention of plaintiff was that the award was not made rule of court; that it was not khula and that the Jirga had not determined the dower---Validity---Plaintiff had proved through evidence that dower was fixed at Rs. 250,000/- whereas the defendant had proved that he had paid only Rs. 50,000/- to the plaintiff---Defendant had failed to prove through contents of the award that the plaintiff had waived her remaining part of the dower---Plaintiff was entitled to obtain Rs. 200,000/- as her dower---Revision petition was dismissed.

Saadat Ullah for Petitioner.

Shuja Alam for Respondents.

Date of hearing: 20th October, 2021.

JUDGMENT

MALIK INAYAT-UR-REHMAN, J.---The instant Civil Revision Petition under section 115, C.P.C. has been preferred by the petitioner above against the concurrent findings passed by the learned Additional District Judge Gilgit and Senior Civil Judge Gilgit vide impugned judgments/decrees dated 13.05.2019 and 27-10-2018 respectively.

2. Brief facts deemed necessary for filing of the instant petition are that present respondents/plaintiffs had filed a suit in the court of Senior Civil Judge Gilgit for recovery of dower amount of plaintiff No.1 amounting to Rs.250,000/-, jewelry amount worth Rs.100,000/- and maintenance amount of the plaintiffs @ Rs.7000/- per month, i.e., Rs.4000/- maintenance amount of plaintiff No.1 and Rs.3000/- maintenance amount of plaintiff No.2, from June 2015 to 25-03-2016. The present respondent No.1 has claimed that she had contracted marriage with the petitioner on 19-08-2012 and lived a satisfactory life. During this wedlock, respondent No.2 was born, but suddenly, in the month of June 2015, petitioner had sent the respondents to her parents home. On 25-03-2016, the petitioner divorced the respondent No.1 without any reason. Then the respondent No.1 claimed for the aforementioned dower money, jewelry and maintenance amount for the period June

2015 to 25-03-2016, but the petitioner refused to pay the same, hence the respondents had filed the Civil Suit for recovery of the same claims.

3. The learned trial Court framed 16 issues including relief and thereafter heard arguments on behalf of both the parties and passed his detailed findings on each and every issue. Finally, the learned Trial Court has partially decreed the suit of the respondents vide judgment/ decree dated 27-10-2018 upto the extent of Rs.250,000/- dower amount of present respondent No.1 and maintenance amount of present respondent No.2 @ Rs.3000/- per month from June 2015 and dismissed the remaining part of the claimed amounts.

4. Feeling aggrieved with the aforementioned judgment/decree of the learned trial court, the petitioner filed a Civil First Appeal in the court of the learned Additional District Judge Gilgit. The learned First Appellate Court has also formulated three points for determination of the fate of the Civil First Appeal and after hearing the parties, has maintained the judgment/ decree of the learned Trial Court with slight modification/ addition that respondent No.1 is entitled to receive maintenance amount from June 2015 to 08-09-2017, i.e., when the custody of child/respondent No.2 was handed over to the petitioner vide judgment/order dated 08-09-2017, passed by the learned Judge Guardians and Wards Act Gilgit.

5. Feeling aggrieved and dissatisfied with the judgments/decrees passed by both the courts below, petitioner has preferred the instant Civil Revision Petition.

6. The learned counsel for the petitioner has contended that the case has already been decided by the Jirga members with the consent of parties as such the impugned judgments/decrees passed by both the learned Courts below are contrary to law and facts on the record of the case as such the same are not maintainable and liable to be set aside. The learned counsel for the petitioner has further contended that both the courts below have ignored the documentary evidence of the petitioner and failed to apply their judicious mind as such committed non-reading and misreading of the law and evidence. He also submitted that the principle of approbate and reprobate attracts and the plaintiff No.1 could not be allowed to get divorce in the consequence of private arbitration and then turn back against the defendant/present petitioner contrary to the contents of award and seeks reliefs/ claims which are settled in the private award. The divorce was in fact khula and plaintiff had withdrawn from all her claims; hence, both the impugned judgments/decrees passed by both the courts below are not sustainable in the eye of law and liable to be set aside. He, however, did not press the petition to the extent of maintenance of the child/ward allowed by the learned First Appellate Court.

7. On the other hand, the learned counsel for the respondents has supported the impugned judgments/ decrees passed by both the lower courts below and prayed for dismissal of the instant revision petition with the submission that the award is not made rule of Court nor it was khula and the Jirga had not determined the dower and relinquishment or waiver of any dower claim by the plaintiff No.1 while in fact a divorce was effected between the parties due to differences between the couple and evidence supports the claims of the plaintiff; thus, principle of approbate and reprobate is not attracted, therefore, the impugned judgments are liable to be maintained in dismissal of the petition in hand.

8. I have considered arguments advanced by the learned counsel for the parties and have gone through the record of the case with their able assistance.

9. Perusal of record reveals that the verdict of Jirga, Exh.D/4, has been signed by both the parties and their witnesses, but as to point No.2 of the award Exh.D/4 relating to dower, the plaintiff No.1 has proved to the contrary through her evidence That a dower of Rs.250,000/- was fixed and petitioner/ defendant has proved through Exh.D/4 that he had paid Rs.50,000/- only to the plaintiff No.1. The defendant has not been able to prove through the contents of the private award and through his evidence that the plaintiff No.1 has waived her remaining dower to him in result of the private arbitration; hence, principle of reprobate and approbate is not attracted to the case of the parties to this extent as such the grounds of appeal except to the extent of Rs.50,000/- dower amount are not established and the impugned judgments/decrees are there-fore passed in consonance with law and correct appreciation of evidence on file, therefore, except to the extent of variation of dower amount from Rs.250,000/- to Rs.200,000/- the impugned judgment of Additional District Court does not call for interference of this Court in reversion.

10. In view of above, the revision in hand fails and subject to above is hereby dismissed accordingly. File.

SA/18/GB Petition dismissed.

;